

Crl. Rev. No.78903 of 2022

Nadeem Ahmad.

Shafqat Pervaiz, etc.

13.12.2022.

Petitioner in person.

Through instant criminal revision, Nadeem Ahmad-the petitioner, has prayed for setting aside the order dated 14.09.2022 passed by the learned Addl. Sessions Judge Sahiwal, whereby the application filed by the petitioner for proceeding against respondent No.1 under sections 193, 420, 419 PPC read with other penal provisions of section 476 PPC read with section 195(1)(b) of Cr.P.C. was dismissed.

2. Briefly, the facts of the case are that respondent No.1-Shafqat Pervaiz filed a suit for the recovery of Rs.20,00,000/- under order 37 of the Civil Procedure of the Code along with accrued markup till realization of the amount based on the cheque against the petitioner on 05.05.2021 before the learned District Judge, Sahiwal. The petitioner filed an application for leave to appear and defend the suit, which was accepted, and the petitioner was directed to submit surety bounds. After that, the petitioner submitted surety bounds. During the proceedings, the petitioner moved an application under Section 193 PPC, etc., which was dismissed as being withdrawn. After that, the petitioner submitted an application under section 476 PPC read with section 195(1)(b) of Cr.P.C. for proceedings against respondent No. 1 under sections 193, 420, and 419 PPC. The learned Additional Sessions Judge, Sahiwal, on

14.09.2022, dismissed the same. Hence this revision petition.

3. The petitioner has submitted that it is an admitted fact that respondent No.1 appended documents with the above said suit, which are false; that respondent No.1 is a retired manager from the bank, which is not correct and, in this way, he committed impersonation, and in the plaint, he narrated that cheque amounting to Rs.8,00,000/- was dishonored, however, dishonor slip has not been appended with the plaint. So, respondent No.1 had given false information while filing the above-said suit against the petitioner.

4. Heard. Record perused.

5. The petitioner remained unable to rebut that suit for recovery is pending adjudication, and still, the documents in the hands of the petitioner were not given in evidence. The Civil Court is competent to decide the point about the nature of the said documents only at the time of the disposal of the suit. So long as the main suit is pending, merely having documents will not create any right for the petitioner to file a complaint against respondent No.1.

Section 195 (1)(C) Cr.P.C reads as follows:

"195(1) No Court shall take cognizance

(a) -----

(b) -----

(c) of any offence described in Section 463 or punishable under Section 471, 475, or 476 of the said code, when such offence is alleged to have been committed by a party to any proceedings in any court in respect of a document produced or given in evidence in such

proceeding, except on the complaint in writing of such court, or of some other court to which such court is subordinate".

5. A reading of the above provision clearly shows that the learned Court is competent to take note of whether to initiate the proceedings or not at the time of the final disposal of the suit. Therefore, the pendency of a suit is a bar to the initiation of proceedings. Under the Law of Evidence also, the contents of documents must be proved either by primary or secondary evidence. At the most, admission of documents may amount to an admission of contents but not its truth. Documents having yet to be produced and marked as required under the Qanoon-e-Shahdat Order 1984 cannot be relied upon by the Court. Contents of the document cannot be proved by merely filing in a court. The petitioner admitted that the learned District Judge, Sahiwal, still had not decided on the civil suit. In above said situation and admission of the petitioner, the conclusion drawn by the learned Addl. Sessions Judge Sahiwal through impugned order dated 14.09.2022, is the appropriate decision. The petitioner did not point out any reason, much less cogent, to interfere in the impugned order. Meaning thereby the trial Judge has recorded the compelling grounds. Such order, containing valid reasons, cannot possibly be interfered with by this Court in the exercise of limited revisional jurisdiction under Section under sections 435, 439 Cr.P.C., unless and until the same is illegal, perverse, and without jurisdiction. Since this court has observed no such patent illegality or legal infirmity, the impugned order

dated 14-09-2022 deserves to be and is hereby maintained in the obtaining circumstances of the case.

6. The upshot of the above discussion is that the instant petition is without any substance, which is hereby **dismissed**.

(Aalia Neelum)
Judge

Approved for reporting

(Aalia Neelum)
Judge

*Ikram**